

grant Plaintiffs' motion for leave to amend to allow Plaintiffs to file the 2AC, on the terms set forth in this ruling.

B. Motion to Continue Trial

Allowing the filing of the 2AC will change the status of the case sufficiently to warrant continuance of the trial, as service by publication will be required for the "unknown persons" defendants. Any additional discovery can proceed during the time period for publication and response by the "unknown persons." The motion was filed approximately seven weeks before the scheduled trial date. No prior continuances or extensions of time have been granted. Plaintiffs seek a continuance of only approximately three months, just enough to effectuate service by publication and allow for the response by any unknown persons. Based on the prior service by publication, it seems unlikely there will be a response.

The Court concludes that the need for the continuance outweighs any prejudice caused by the delay, considering that the action is entitled to a trial preference based on the preliminary injunction issued July 29, 2025. The Court finds the interests of justice warrant the continuance, predicated upon the Court allowing the filing of the 2AC, in light of, among other things, the public interests at stake in the claims being asserted. The Court will attempt to minimize any prejudice by providing a trial date approximately three months from the current date. Weighing the circumstances presented, the relevant factors, the concerns regarding delay and prejudice to the defendant, and the interests of the Plaintiffs in presenting at trial all grounds supporting the existence of a public easement, the Court finds the motion for continuance of the trial for good cause should be **granted** pursuant to Rule 3.1332.

Conclusion and Ruling

The Court **grants** the motion for leave to amend and **grants** the motion to continue the trial and imposes the following terms and conditions on granting the motion: (1) Plaintiffs shall file and serve their 2AC on the existing defendant(s) **by July 24, 2026**; (2) Plaintiffs shall present to the Court an *ex parte* application for service by publication or a stipulation and proposed order for service by publication **by no later than July 29, 2026**; and (3) the parties **shall appear at the hearing, in person or by Zoom**, to address scheduling the continued trial and issue conference dates.

10. 9:00 AM CASE NUMBER: C23-02586

CASE NAME: FLORENCE DROCAN VS. FULL CIRCLE OF CHOICES

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

***TENTATIVE RULING**

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on July 9, 2025. No compliance statement or declaration was prepared by Plaintiff's Counsel as ordered by the Court.

This matter is **continued** to August 19, 2026 at 9:00 a.m. On August 19, 2026, Plaintiff's Counsels, Kane Moon, Esq., is **ordered to appear in person and ordered to show cause** as to why they should

not be held in contempt for failing to comply with the Court's order to prepare and file a compliance statement. No remote appearance is authorized for this hearing.

The OSC will be discharged, and Counsel may appear remotely at the August 19, 2026 hearing, if Counsel complies with the Court's order by filing and serving a compliance statement prepared by Counsel or the Class Action Administrator with the Court at least ten (10) court days before the hearing.

11. 9:00 AM CASE NUMBER: C23-02686
CASE NAME: ALICIA FRANCIS VS. BAY STANDARD MANUFACTURING, INC.
***HEARING ON MOTION IN RE: FINAL COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on September 19, 2025.

Upon review of the compliance report filed by Plaintiff's Counsel, and the declaration filed by Nicole Bench of Apex Class Action certifying disbursement filed on May 4, 2025, the Court determines that Plaintiff has complied with the Court's orders.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$16,012.50 to Plaintiff's Counsel. The Class Action Administrator shall release said fees no later than ten (10) days from the date of this Order.
2. No appearance is required at the hearing on July 22, 2026.

12. 9:00 AM CASE NUMBER: C23-03095
CASE NAME: DAVID KINSLEY VS. S. T. M. AUTOMOTIVE
***HEARING ON MOTION IN RE: FOR ORDER APPROVING SETTLEMENT**
FILED BY: KINSLEY, DAVID W.
TENTATIVE RULING:

Summary

Plaintiff David W. Kingsley, individually and on behalf of others similarly situated, brings this Motion for Order Approving PAGA Settlement against Defendant S.T.M Automotive. Since this motion is unopposed, this Motion is **granted** as set forth herein. No appearance is required at the hearing on July 22, 2026.

Background and Settlement Terms

This action was commenced on December 7, 2023, when Plaintiff David W. Kingsley filed a class action Complaint against Defendants S. T. M. Automotive d/b/a S&S Distributors ("Defendant"), alleging